

A “school district and its employees have a special relationship with the district’s pupils[.]” (C.A. v. William S. Hart Union High School District (2012) 53 Cal.4th 861, 869.) However, a special relationship, alone, does not create liability for a school district because tort liability for governmental entities must be based on statute. (Guerrero v. South Bay Union School Dist. (2003) 114 Cal.App.4th 264, 268.)

Pursuant to Government Code section 815, subdivision (a), a public entity is not liable for an injury whether such injury arises out of an act or omission of the public entity or a public employee or any other person, except as otherwise provided by statute. (Gov. Code, § 815.) A public entity “is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” (Gov. Code, § 815.2, subd. (a).) A public employee “is liable for injury caused by his act or omission to the same extent as a private person.” (Gov. Code, § 820.) “Except as otherwise provided by statute, a public entity is not liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability.” (Gov. Code, § 815.2, subd. (b).) “In other words, ‘the general rule is that an employee of a public entity is liable for his torts to the same extent as a private person (§ 820, subd. (a)) and the public entity is vicariously liable for any injury which its employee causes (§ 815.2, subd. (a)) to the same extent as a private employer (§ 815, subd. (b)).” (C.A. v. William S. Hart Union High School District (2012) 53 Cal.4th 861, 868, citation omitted.)